

		The timing of the disclosure was not something Defendant chose but is set by the statute. Notably, the disclosure took place <i>after</i> Defendant filed its motion to compel arbitration, thus showing its intent to pursue its right to arbitration. [David Decl., ¶¶ 3-4.] This record does not show, by clear and convincing evidence or otherwise, that Defendant has “intentionally relinquished or abandoned” its right to arbitrate. Accordingly, the court finds that Defendant has not waived its right to arbitration. Plaintiff also objects that Defendant did not demand arbitration, and await Plaintiff’s refusal, prior to moving to compel. [Opp. at 4; David Decl., ¶ 2.] <i>See</i> Code Civ. Proc. §1281.2 (“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate....”) But, here, the fact that Plaintiff has already filed his lawsuit, “suffice[s] to show [his] refusal to arbitrate the controversy.” <i>Hyundai Amco America, Inc. v. S3H, Inc.</i> (2014) 232 Cal.App.4th 572, 577–578. The motion to compel arbitration is granted.
5.	2024-1394324 Meador vs. Bricks and Mortar Entertainment LLC	Defendant requests the Court exercise its discretion to strike the corrected costs memorandum under CCP section 1033, subdivision (a). The Court declines to do so and denies the motion to strike. The motion to tax the costs in Plaintiff’s corrected memorandum of costs (ROA 312) is granted in part and denied in part. “The right to recover costs is entirely a creature of statute (citation), and section 1032 is ‘the fundamental authority for awarding costs in civil actions.’” (<i>Brown v. Desert Christian Center</i> (2011) 193 Cal.App.4th 733, 737–738, citations omitted.) Code of Civil Procedure section 1032, subdivision (b), provides that a “prevailing party” is entitled to costs “as a matter of right.” “Code of Civil Procedure section 1033 enumerates allowable costs and costs which are not allowable, and restricts allowable costs to those reasonably necessary to the conduct of the litigation.” (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 129.) Where items on the costs bill appear to be proper charges, “the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant[.]” (<i>Id.</i> at p. 131.) The burden is on the objecting party to show that costs are unnecessary or unreasonable. (<i>Litt v. Eisenhower Medical Center</i> (2015) 237 Cal.App.4th 1217, 1224.)

For the reasons explained, below, the motion to tax is granted in part as to the following items of costs: \$480 for deposition costs; \$274.69 for service of process costs; \$253.41 for e-filing or e-service costs; and, \$703.84 in “other” costs. The remainder of the motion to tax is denied.

Item no. 4: Deposition Costs

Plaintiff claimed \$9,606.01 in deposition costs but, in her opposition, voluntarily withdrew \$1,126.66 for mathematical error and \$2,200 for a non-court ordered expert deposition. Additionally, Onnyx properly put an additional \$480 of deposition costs at issue, including a cancellation fee and miscellaneous deposition fees. Plaintiff did not meet her burden of showing they are recoverable. Accordingly, the Court taxes these costs and awards a total of \$5,799.35 for deposition costs.

Item no. 5: Service of Process

Plaintiff claims \$773.69 in service of process costs. Onnyx seeks to tax \$613.69, because “it is undisputed that the at-issue costs were not part of any effort to prosecute Defendant,” and were incurred for serving “non-parties and third parties.” The Court allows the \$299 for serving process on witnesses to appear at trial. (*Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 694 [rejecting argument that prevailing party could not recover service of process fees for witnesses who did not ultimately testify at trial].)

However, the Court grants the motion to tax \$274.69 in service of process costs for *other* defendants. (See *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 813 [taxing costs for service of process on other defendants dismissed prior to trial; “respondents are responsible only for those costs reasonably incurred by Levy in connection with the commencement and prosecution of the underlying action against them”].) Plaintiff is awarded \$459 in service of process costs.

Item no. 13: Models, Enlargements, and Photocopies of Exhibits

Plaintiff claims \$250 in costs for models, enlargements, and photocopies of exhibits. Onnyx seeks to tax these costs in its entirety, because “Plaintiff only had 24 exhibits at trial.” Plaintiff opposes the motion, because the exhibits “were voluminous” and Plaintiff “had to prepare diagrams and exhibits from Google Earth in addition to trial binders.” The Court finds Plaintiff has shown these costs were reasonably necessary and declines to tax this item in any amount.

Item no. 14: Fees for Electronic Filing or Service

		Plaintiff claims \$594.74 in costs for e-filing or service. Originally, Onnyx sought to tax these costs in their entirety, but, on reply, Onnyx requests that the Court tax \$253.41 and find only \$341.33 is recoverable. Plaintiff has not met her burden of showing the e-filing fees are <i>all</i> recoverable. The Court taxes this item, in part, and awards a total of \$341.33 in e-filing or e-service fees. <u>Item no. 15: Other</u> Plaintiff claims \$917.54 under “other,” which includes costs for “court reporter transcript fees, document retrieval and subpoena of documents fees.” Plaintiff claims she should be allowed to recover these discretionary costs, because she “ordered transcripts to prepare for closing argument and for post-trial motions”; and “[t]here is no authority for Defendant’s position that transcript fees are not recoverable for post-trial motions.” The Court taxes \$703.84 in transcript fees, because these were not ordered by the court. (Code Civ. Proc., § 1033.5, subd. (b)(5).) However, the Court finds the \$213.70 in document retrieval fees should be allowed, because they were reasonably necessary to the litigation. (See <i>Naser v. Lakeridge Athletic Club</i> (2014) 227 Cal.App.4th 571, 578.) Thus, the Court taxes these costs, in part, and awards a total of \$213.70 in “other” discretionary costs. After these deductions are made, Plaintiff is entitled to an award of \$9,027.47 in costs against Defendant Onnyx Investments, LLC. Plaintiff shall give notice of the ruling.
6.	2025-1530331 Colombana vs. Colombana	Defendant Danissa Columbana’s general demurrer to Plaintiff Brian Columbana’s Complaint is sustained as to the 1st–3rd, 5th, and 6th causes of action with 30 days leave to amend. The demurrer is overruled as to the 4th, 7th, and 8th causes of action. The special demurrer is overruled in its entirety as the allegations in the complaint are not confusing, such that Defendant cannot determine what to respond to. (See <i>Khoury v. Maly’s of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139.) Defendant’s request for judicial notice (“RJN”) is granted. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452.